

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 31-007

**Amendments to Title 6, Chapter 6 Article B of the Chickasaw Nation Code
(Changes of Names)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature recognizes the need for the District Court of the Chickasaw Nation to consider petitions for the changing of names under Chickasaw law.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 6, Chapter 6 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (Additions are shown in red):

“CHAPTER 6

RIGHTS OF MAJORITY AND CHANGES OF NAMES

ARTICLE A

RIGHTS OF MAJORITY

ARTICLE B

CHANGES OF NAMES

SECTION 6-602.1

RIGHT TO PETITION FOR CHANGE OF NAME.

Any Indian who has been domiciled in the territorial jurisdiction of the Court for more than thirty (30) days next preceding the filing of the action, may petition for a change of name in a civil action in the District Court; provided, no person who is required to register as a sex offender pursuant to the Chickasaw Nation Sex Offenders Registration Act may petition for a change of name. If the person be a minor, the action may be brought by guardian or next friend as in other actions.

SECTION 6-602.2

CONTENTS OF PETITION.

The petition shall be verified and shall state:

1. the name and address of the petitioner;
 2. the facts as to domicile and residence;
 3. the date and place of birth;
 4. the birth certificate number and place where the birth is registered, if registered;
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5. the name desired by petitioner;
 6. a clear and concise statement of the reasons for the desired change; and
 7. a positive statement that the change is not sought for any illegal or fraudulent purpose, or to delay or hinder creditors.

SECTION 6-602.3**NOTICE OF FILING.**

A. Notice of filing of the petition shall be given by publishing the same one (1) time at least ten (10) days prior to the date set for hearing, in some newspaper authorized by law to publish legal notices printed in the county of the State of Oklahoma where the petitioner resides. The notice shall contain the style and number of the case, the time, date and place where the same is to be heard, and that any person may file a written protest in the case prior to the date set for the hearing. The hearing date may be any day after completion of the publication. The Court, for cause, may continue the matter to a later date.

B. If petitioner is a minor, notice must be made to both natural parents if known and living.

C. The Court may waive the publication requirements of this Section for good cause which includes, but is not limited to, cases of domestic violence in which the court proceedings are sealed.

SECTION 6-602.4**SWORN EVIDENCE.**

The material allegations of the petition shall be sustained by sworn evidence, and the prayer of the petition shall be granted unless the Court finds that the change is sought for an illegal or fraudulent purpose, or that a material allegation in the petition is false.

SECTION 6-602.5**JUDGMENT.**

The judgment shall recite generally the material facts and the change granted, or if denied, the reasons for the denial. A certified or authenticated copy of such judgment may be

filed in any office, where proper to do so, and shall be regarded as a judgment in a civil action.

SECTION 6-602.6

FRAUDULENT USE OF JUDGMENT.

Any person who obtains a judgment under this Chapter 6, Article B, willfully intending to use the same for any illegal or fraudulent purpose, or who thereafter willfully and intentionally uses such judgment, or a copy thereof, for any illegal or fraudulent purpose, shall be deemed guilty of a misdemeanor.

SECTION 6-602.7

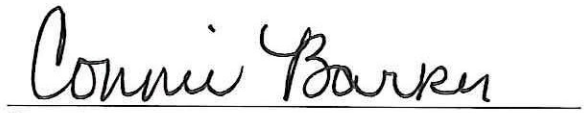
CONCURRENT JURISDICTION.

No Indian domiciled in the territorial jurisdiction of the Chickasaw Nation may change his name except as provided in this Chapter 6, Article B, or by marriage (Title 6, Chapter 1 Article C of the Chickasaw Nation Code), or by decree of divorce (Title 6, Chapter 1 Article A of the Chickasaw Nation Code), or by adoption (Title 6, Chapter 4 of the Chickasaw Nation Code), or by the courts of the State of Oklahoma pursuant to the Oklahoma Statutes."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 19, 2014, by a vote of 13 ayes, 0 nays, 0 abstentions.

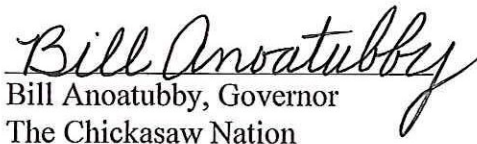


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:



Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 19 2014

CHICKASAW TRIBAL LEGISLATURE

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Explanation: This resolution provides language in the Chickasaw Nation Code authorizing the District Court of the Chickasaw Nation to change a person's name. The Court currently adopts Oklahoma law to change names.

Presented By: Court Development Committee